

**IN THE DISTRICT COURT OF APPEAL OF FLORIDA
FIRST DISTRICT
TALLAHASSEE, FLORIDA**

Case No. 1D26-0728

L.T. Case No. 2025-CA-002469

CHRISTOPHER HANSON, individually and as
attorney for himself and as attorney/next friend

for his minor children,

Appellant,

v.

THE FLORIDA BAR, RICHARD D. COURTEMANCHE JR.,

ALLIE F. HUSTON, and ALICIA GANGI,

Appellees.

ON APPEAL FROM THE CIRCUIT COURT OF THE
SECOND JUDICIAL CIRCUIT, IN AND FOR LEON COUNTY, FLORIDA
HONORABLE ANGELA C. DEMPSEY, PRESIDING

INITIAL BRIEF OF APPELLANT

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STATEMENT OF THE CASE AND OF THE FACTS

A. Nature of the Action

This is an appeal from a final order dismissing with prejudice a verified petition for writ of mandamus, declaratory relief, and attorney's fees and costs. (R. 769–70.) Appellant Christopher Hanson, an attorney admitted to The Florida Bar, filed the petition in the Circuit Court for the Second Judicial Circuit, in and for Leon County, on December 17, 2025. (R. 10–35.) The petition sought (i) production of public records concerning Bar Complaint No. 25-6861 (the “Davis Bar Complaint”), pursuant to Article I, Section 24 of the Florida Constitution and Florida Rule of General Practice and Judicial Administration 2.420; (ii) mandamus to compel performance of the ministerial duties imposed on The Florida Bar and its officers by the Rules Regulating The Florida Bar, including Rules 3-7.1 and 3-7.3; and (iii) declaratory relief. (R. 10–35.)

This Court has jurisdiction under Article V, Section 4(b)(1) of the Florida Constitution, Florida Rule of Appellate Procedure 9.030(b)(1)(A), and Florida Rule of Appellate Procedure 9.110, as the appeal is from a final order of a circuit court not directly appealable to the Florida Supreme Court.

B. Course of Proceedings Below

Appellant filed the verified petition on December 17, 2025. (R. 10–35.) Service was completed on each Appellee by January 13, 2026. (R. 498–520.) On January 22, 2026, Appellant filed a Motion for Immediate Issuance of Alternative Writ of Mandamus and for Expedited Hearing. (R. 521–624.)

On January 27, 2026, the Florida Bar Defendants filed a Motion to Dismiss (the “MTD”). (R. 625–43.) The MTD argued (1) lack of subject-matter jurisdiction; (2) failure to state a cause of action; and (3) absolute immunity. (R. 625.) On February 5, 2026, Appellant filed a Response in Opposition to the Motion to Dismiss. (R. 644–60), to which was attached as Exhibit A a 53-slide seminar presented by Appellee Courtemanche titled “Florida Public Records Law” (R. 659–713).

On February 13, 2026, the trial court entered an Order Granting The Florida Bar Defendants' Motion to Dismiss and Final Judgment for Defendants (the “Order”). (R. 769–70.) On February 19, 2026, Appellant timely filed a Verified Motion for Rehearing under Florida Rule of Civil Procedure 1.530. (R. 771–74.) On February 24, 2026, the trial court entered an Order Denying Motion for Rehearing (the “Rehearing Order”). (R. 775.) Appellant timely filed a Notice of Appeal on March 8, 2026. (R. 776.)

C. Statement of Material Facts

Because this appeal arises from an order of dismissal, the well-pleaded factual allegations of the Verified Petition are accepted as true. The facts material to this appeal are as follows.

1. The Davis Bar Complaint, Requests for Additional Review and the Bar's Three-Level Closure

On February 18, 2025, Appellant filed a verified Bar complaint with The Florida Bar against attorney Scott Paul Davis (Florida Bar No. 0074284), alleging ethical violations in the underlying family-law case. (R. 19, ¶ 32; R. 78–102 [Appendix Item 5, the verified Bar complaint].)

The Bar allegedly processed the complaint at three successive levels, each described in the Bar's own correspondence: (a) review by Bar Counsel Allie Huston (R. 626; R. 640–43 [Composite Ex. A]); (b) review by Shanell M. Schuyler as Director of Intake (ACAP) (R. 640–42); and (c) review by Alicia Gangi as Chair of Judicial Circuit Grievance Committee 13A (R. 643). Each level concurred in closing the file. (R. 626–27.) Ms. Schuyler further confirmed in the September 24, 2025 letter that the matter was “closed.” (R. 641).

The Director of Intake's letter of September 24, 2025, expressly described the processing as encompassing “investigation by a Senior Staff

Attorney, review of the closure by the undersigned as Director of Intake, and a review by the Chair of Grievance Committee 13A.” (R. 641.) The Bar’s correspondence also referred to “review of the file,” review of “submissions,” and concurrence with closure. (R. 640–43.)

2. The Bar’s File: A Single Email From the Respondent Attorney

On November 10, 2025, Appellant filed a public-records request with The Florida Bar seeking copies of all records related to the Davis Bar Complaint. (R. 19, ¶ 36; R. 627.) On the same day, Appellee Richard D. Courtemanche Jr., Deputy General Counsel for The Florida Bar, responded by transmitting what he described as “the entire public record related to [the] request.” (R. 627.)

On the same day the Bar transmitted what Mr. Courtemanche characterized as “the entire public record,” Appellant raised the gap directly with Mr. Courtemanche in writing, observing that “the provided records appear incomplete under the definition of the public record in Rule 3-7.1(b).” Appellant noted that the production “lacks any correspondence, reports, papers, or other communications furnished to, served on, or received from the respondent (Mr. Davis), including but not limited to: Any rebuttal or response submitted by Mr. Davis to the complaint. All emails, letters, notices, or other exchanges between The Florida Bar (including

staff, investigators, or grievance committee members) and Mr. Davis or his representatives during the investigation and closure process.” (R. 46–47.)

Mr. Courtemanche's reply on November 24, 2025 did not address that core issue. Instead, he reiterated only that Appellant had been provided “the entire public record under Rule 3-7.1(b),” and added that “the bar is not an investigative agency like law enforcement.” (R. 44.) The Bar's reply did not state — and the Bar has never stated — whether records of communications with the respondent attorney exist outside the file the custodian compiled.

On December 1, 2025, Appellant submitted to Mr. Courtemanche four narrow follow-up questions designed to resolve the ambiguity in the Bar's responses. (R. 39–40.) The questions read in pertinent part:

1. Apart from Mr. Davis's brief e-mail pointing out a typographical error, did the Bar receive any written or electronic communication from and/or send any written or electronic communication to Mr. Davis (or anyone on his behalf) in connection with this complaint?

2. If the answer to #1 is yes, on what specific provision of the Rules Regulating The Florida Bar does the Bar rely for the position that such correspondence is not part of the “public record” as that term is defined in Rule 3-7.1(b) (which expressly includes “any reports, correspondence, papers . . . furnished to, served on, or received from the respondent”)?

3. If the answer to #1 is no (i.e., the typo e-mail is literally the only communication ever received from or sent to the respondent), will the Bar please confirm that in writing?

4. [W]ill the Bar provide a high-level privilege/confidentiality index . . . for any documents that exist in the file but which the Bar has determined fall outside the Rule 3-7.1(b) public-record definition?

(R. 39–40.) The Bar did not answer any of the four questions. A second follow-up on December 15, 2025, received only a “matter is closed” reply. (R. 20, ¶ 38.)

Appellant's correspondence with The Florida Bar (from the complaint through the public records requests) is documented across a 25-page email chain spanning February through November 2025. (R. 39–74.) Appellant consistently expressed concern over the Bar's handling of the complaint resulting in substantive and good-faith efforts to engage with Bar representatives. The Bar almost completely ignored specific written requests for status updates, offers of additional evidence and witness information, requests for a formal interview, attempts to reach Bar representatives by phone, and inquiries about the investigation's procedural posture (sent on, among other dates, July 22, July 30, August 7, August 14, September 1, September 12, September 29, November 10, and November 21, 2025). (R. 39–74.)

The Bar's response was a pattern of silence punctuated by form acknowledgments and automatic replies — no contact for an interview, no willingness to review additional evidence, no substantive engagement —

culminating in a written notice that further follow-ups would be placed in the file “without response.” (R. 641.) The contrast between the complainant's documented and sustained efforts on one side and the Bar's uniform non-engagement on the other further demonstrates the procedural failure Rules 3-7.1 and 3-7.3 forbid.

The production omitted any record of the “investigation by a Senior Staff Attorney” the Director of Intake's letter described. (R. 641.) The production omitted any review memorandum, notes, or work product reflecting Schuyler's “review of the closure” as Director of Intake. (*Id.*) The production omitted any record reflecting Gangi's “review of the file” as Grievance Committee Chair. (R. 643.) And the production omitted any communications between Bar officials and the respondent attorney except a single email from Davis pointing out a typographical error in a letter the Bar had previously sent him. (R. 19, ¶ 36; R. 647, ¶¶ 16–20.)

That single typo email is itself dispositive evidence that the Bar communicated with Davis via email. The Bar produced the typo email but did not produce any rebuttal materials from Davis. Further, the Bar did not produce any communications relating to engagement with Davis on the substance of the complaint at any stage of the three-level review.

During litigation, the Florida Bar Defendants represented in their Motion to Dismiss that “such records were not provided because they do not exist.” (R. 634.) The wording of the MTD is studiously ambiguous as to whether (a) no additional records were placed in the official “public record” the custodian compiled, or (b) no such records exist anywhere in the Bar's possession at any time. (R. 647–48, ¶¶ 16–21.) The Florida Bar Defendants have not, by sworn declaration or otherwise, unambiguously stated that no responsive records exist anywhere. The Petition expressly alleges that such records exist and that they were withheld. (R. 19, ¶ 36; R. 21, ¶¶ 45–46.)

3. Mr. Courtemanche's Public-Records Seminar

Appellee Courtemanche, in his capacity as Deputy General Counsel of The Florida Bar, has authored and presented a 53-slide seminar titled “Florida Public Records Law,” a copy of which is in the record below. (R. 659–713.) The presentation instructs Florida agencies — under the heading “Last of Rick's Rules” — that “[i]f you have the record, it must be produced even if it could have been disposed of under your retention schedule.” (R. 653, ¶ 56, 766.) The presentation instructs that internal documents, drafts, working copies, preliminary versions, and inter-office

memoranda are public records. (R. 671.) And it instructs custodians: “Don't say NO unless you are sure.” (R. 654, ¶ 62, 766.)

D. The Order on Appeal and the Order Denying Rehearing

The Order Granting The Florida Bar Defendants' Motion to Dismiss and Final Judgment for Defendants states, in substance, three rulings: (1) “The Court does not have jurisdiction to review the Bar's decision to dismiss Plaintiff's grievance against the attorney in his dissolution case” (citing *Tyson*); (2) “The Florida Bar and its employees are immune from suit in acts taken in their official capacity” (citing *Cole v. Owens*); and (3) “The Plaintiff has failed to state a cause of action for all the reasons articulated in the Defendants' Motion to Dismiss[.] Any Amendment would be futile.” (R. 769–70.)

The Order does not cite Florida Rule of General Practice and Judicial Administration 2.420(e)(2). It does not analyze Article I, Section 24 of the Florida Constitution. It does not address whether the Petition states a prima facie public-records claim. And it does not address the dispositive distinction between this case — in which the Bar's own three-level description and one-email production raise the issue whether any investigation under Rule 3-7.3(c) was initiated — and *Cole*, in which the

Bar had completed its investigation and the plaintiff sought money damages for the result.

Appellant moved for rehearing under Rule 1.530, expressly directing the trial court to Rule 2.420(e)(2). (R. 772, ¶¶ 7–13.) The Rehearing Order is one paragraph: “There is no legal or factual basis to grant Plaintiffs’ motion. Therefore, it is ORDERED AND ADJUDGED that Plaintiffs motion is DENIED. No further motions for rehearing or reconsideration will be allowed.” (R. 775.) The Rehearing Order does not cite or address Rule 2.420(e)(2). Judge Dempsey disposed of the Petition without allowing a Plaintiff a hearing despite multiple requests.

STATEMENT OF THE ISSUES

Issue I. Whether the circuit court reversibly erred in dismissing the public-records and ministerial-duty claims for lack of subject-matter jurisdiction, where Florida Rule of General Practice and Judicial Administration 2.420(e)(2) expressly vests jurisdiction in the circuit court for enforcement actions involving non-judge custodians of judicial-branch records.

Issue II. Whether the circuit court reversibly erred by applying *Tyson v. The Fla. Bar*, 826 So. 2d 265 (Fla. 2002), to dismiss claims seeking enforcement of mandatory ministerial duties. Those duties include the duty

to investigate under Rule 3-7.3(c) and the duty of public disclosure under Rule 3-7.1(b). Appellant alleges that the Bar violated these duties by failing to open any investigation into the Davis complaint, and by improperly concealing any rebuttal materials from Davis and any communications with him concerning the substance of the complaint. The record contains no documentation of any investigation by the Bar's described "Senior Staff Attorney," "Director of Intake," or "Grievance Committee Chair," and no Davis communications other than a single typo email.

Issue III. Whether the circuit court reversibly erred in applying the absolute-immunity doctrine of *Cole v. Owens*, 766 So. 2d 287 (Fla. 4th DCA 2000) — a tort-damages case — to bar a mandamus action seeking specific performance of mandatory legal duties.

Issue IV. Whether the Verified Petition stated a prima facie case for mandamus under Florida Rule of Civil Procedure 1.630, alleging clear legal right, indubitable ministerial duty, and absence of any other adequate remedy.

SUMMARY OF ARGUMENT

This appeal turns on a narrow legal question with a clear answer. The Florida Supreme Court's own rules expressly direct that enforcement actions against non-judge custodians of judicial-branch records be filed in

the circuit court. Fla. R. Gen. Prac. & Jud. Admin. 2.420(e)(2). The Florida Bar and its named officers are non-judge custodians of judicial-branch records. Yet the trial court dismissed Appellant's public-records action for “lack of jurisdiction” without citing or addressing Rule 2.420(e)(2) at all. That is reversible error.

The error is compounded by two further mistakes. First, the trial court relied on *Tyson v. The Fla. Bar*, 826 So. 2d 265 (Fla. 2002), to dismiss the entire action. But *Tyson* addresses judicial review of the Bar's discretionary disciplinary outcomes — not enforcement of public-records duties and other mandatory ministerial duties. *Tyson* itself confirms that “mandamus lies to compel the performance of a specific imperative ministerial duty.” *Id.* at 268. Here, the Bar's own correspondence to Appellant describes a three-level processing — “investigation by a Senior Staff Attorney,” Director-of-Intake review, and Grievance-Committee-Chair review (R. 641) — yet the Bar produced no record of any of those three levels.

It defies logic that there was no email correspondence with Davis about the complaint and two additional rounds of review, yet the Bar emailed with Davis about a typo. Either records of communications with Davis and/or internal communications exist at some level and were concealed (in violation of Rule 3-7.1(b)), or the “investigation” the Bar

describes was a paper review of the complainant's submissions only, with no contact with the respondent attorney and no development of a record beyond what the complainant himself supplied (in violation of Rule 3-7.3(c)). *Tyson* does not authorize dismissal under any of the possible scenarios.

Second, the trial court treated *Cole v. Owens*, 766 So. 2d 287 (Fla. 4th DCA 2000), as conferring absolute immunity that bars this entire action. But *Cole* and the cases on which it builds address tort liability for damages — actions to make Bar officials pay money. They do not, and cannot, immunize an official from a court order requiring compliance with the Florida Constitution and the Bar's own rules. If they did, no citizen could ever obtain a writ to compel any government official to follow any law in any official capacity. Florida law does not support that state actors are “immune” from their ministerial duties.

The Petition stated a prima facie case for mandamus on a Rule 1.630 review and a sufficient cause of action under Rule 1.140(b). Plaintiff demonstrated a clear legal right rooted in Article I, Section 24 and Rule 2.420; an indubitable ministerial duty under Rules 3-7.1(b) and 3-7.3(c); and the absence of any other adequate remedy. The “records do not exist” defense the Florida Bar Defendants pressed below was extrinsic to the

pleadings and improper at the dismissal stage. It is also logically self-defeating: either the records exist (in which case they must be produced under Rule 3-7.1(b)) or they do not (in which case the Bar concedes no investigation under Rule 3-7.3(c) was ever conducted).

The Rehearing Order — a one-paragraph denial that does not engage with the Rule 2.420(e)(2) issue Appellant raised — does not cure these errors but compounds them.

This Court should reverse and remand with instructions that the Petition proceed on the merits.

STANDARD OF REVIEW

The trial court's dismissal raises pure questions of law subject to plenary, de novo review. This Court reviews de novo (a) a dismissal for lack of subject-matter jurisdiction, see *Sanchez v. Renda Broad. Corp.*, 127 So. 3d 627 (Fla. 5th DCA 2013); (b) a dismissal for failure to state a cause of action, *City of Gainesville v. State, Dep't of Transp.*, 778 So. 2d 519, 522 (Fla. 1st DCA 2001); and (c) a determination whether a petition makes a prima facie showing for an extraordinary writ under Florida Rule of Civil Procedure 1.630.

On a motion to dismiss, the trial court is confined to the four corners of the pleading, must accept all well-pleaded factual allegations as true, and must draw all reasonable inferences in favor of the non-movant. *City of Gainesville*, 778 So. 2d at 522. Extrinsic factual assertions cannot defeat a complaint at the dismissal stage.

The denial of a Rule 1.530 motion for rehearing is reviewed de novo where, as here, the rehearing motion squarely presented a question of subject-matter jurisdiction. Subject-matter jurisdiction is reviewed de novo at every stage of the proceedings. *Sanchez*, 127 So. 3d at 627.

PRESERVATION OF ISSUES

Each issue raised on appeal was preserved below.

Issue I (Rule 2.420(e)(2) jurisdiction): Verified Petition (R. 12–14, ¶¶ 4–7); Response in Opposition to Motion to Dismiss (R. 651, ¶ 46); Verified Motion for Rehearing (R. 772, ¶¶ 7–13).

Issue II (*Tyson* and ministerial duties): Verified Petition (R. 23–25, ¶¶ 59–67); Response in Opposition (R. 645–47, ¶¶ 6, 12–15; R. 650–51, ¶¶ 36–45); Verified Motion for Rehearing (R. 772–73, ¶¶ 14–18).

Issue III (*Cole* immunity): Response in Opposition (R. 644–45, ¶¶ 3–6; R. 649–50, ¶¶ 31–36); Verified Motion for Rehearing (R. 773, ¶¶ 19–22).

Issue IV (*prima facie* mandamus): Verified Petition (R. 23–26, ¶¶ 59–72); Response in Opposition (R. 657, ¶¶ 79–80).

ARGUMENT

I. THE CIRCUIT COURT HAD JURISDICTION OVER THE PUBLIC-RECORDS AND MINISTERIAL-DUTY CLAIMS UNDER FLORIDA RULE OF GENERAL PRACTICE AND JUDICIAL ADMINISTRATION 2.420(e) (2).

A. Article I, Section 24 and Rule 2.420 confer a constitutional right of access to judicial-branch records — including records of The Florida Bar.

Article I, Section 24(a) of the Florida Constitution provides:

Every person has the right to inspect or copy any public record made or received in connection with the official business of any public body, officer, or employee of the state, or persons acting on their behalf, except with respect to records exempted pursuant to this section or specifically made confidential by this Constitution. This section specifically includes the legislative, executive, and judicial branches of government, including the Office of the Attorney General, every executive department, branch, board, division, and commission, and every legislative agency, the State Court Administrator, every clerk of court, and every other officer or employee of the state.

Fla. Const. art. I, § 24(a) (emphasis added).

The Florida Supreme Court has implemented this constitutional right with respect to judicial-branch records through Florida Rule of General Practice and Judicial Administration 2.420. The Rule's coverage is unambiguous: it expressly defines “judicial branch” to include “The Florida Bar” and “the Florida Board of Bar Examiners” among the entities subject to Rule 2.420. Fla. R. Gen. Prac. & Jud. Admin. 2.420(b)(2).

The Rule's substantive command is equally clear: “The public shall have access to all records of the judicial branch of government, except as provided below.” Fla. R. Gen. Prac. & Jud. Admin. 2.420(a).

The Florida Supreme Court has confirmed that the constitutional access provision “was adopted to ensure public access to all records that by law were made or received by the personnel of these institutions or by persons acting on behalf of these institutions.” *Media Gen. Convergence, Inc. v. Chief Judge of the Thirteenth Jud. Cir.*, 840 So. 2d 1008, 1013 (Fla. 2003). And the Court has long applied a “strong presumption of openness” that places the burden of justifying confidentiality on the custodian. *Barron v. Fla. Freedom Newspapers, Inc.*, 531 So. 2d 113, 116 (Fla. 1988).

Rule 3-7.1(b) of the Rules Regulating The Florida Bar expressly contemplates that, once a disciplinary file is closed, the records of that file — “any reports, correspondence, papers, and other materials furnished to, served on, or received from the respondent” — become public records. R. Regulating Fla. Bar 3-7.1(b). The Florida Supreme Court has confirmed this access right with respect to closed Bar files. *See The Fla. Bar v. Committee*, 916 So. 2d 741, 745 (Fla. 2005).

The Bar's Director of Intake has confirmed in writing that the Davis matter is “closed.” (R. 641.) The records Appellant seeks —

communications between Bar officials and the respondent attorney; any rebuttal materials; and any internal correspondence reflecting the three-level review the Bar describes — are accordingly public records, with no statutory or rule-based exemption claimed.

B. Rule 2.420(e)(2) places jurisdiction over public-records enforcement squarely in the circuit court for non-judge custodians.

The Florida Supreme Court has, in its own rule, expressly assigned circuit-court jurisdiction over public-records actions involving non-judge custodians of judicial-branch records. Florida Rule of General Practice and Judicial Administration 2.420(e)(2) provides that “[a]ll other actions under this rule shall be filed in the circuit court of the circuit in which such denial of access occurs.” Fla. R. Gen. Prac. & Jud. Admin. 2.420(e)(2).

The Rule could not be more direct. It uses mandatory forum language. It identifies the precise category of custodian to which it applies — non-judge custodians of judicial-branch records. And it locates jurisdiction in the very court where Appellant filed: the circuit court of the circuit in which the denial occurred.

The Florida Bar and its officers are not “judges.” They are exactly the non-judge custodians the Rule contemplates. The Petition pleaded jurisdiction expressly on this basis. (R. 12–14, ¶¶ 4–7.) Appellant raised

Rule 2.420(e)(2) again in opposing dismissal (R. 651, ¶ 46) and once more in his Verified Motion for Rehearing (R. 772, ¶¶ 7–13). The Rule was therefore squarely before the trial court at every stage of the proceedings below.

Indeed, the Florida Bar Defendants themselves told the trial court that the records request is governed by Rule 2.420 — not Chapter 119 — because The Florida Bar is part of the judicial branch. (R. 634 n.4 [“The Florida Bar is part of the judicial branch of Florida, and therefore its records are governed by Florida Rule of General Practice & Judicial Administration 2.420”]) That concession is dispositive of the rule's applicability and forecloses any argument that some other regime governs. The Florida Bar cites the rule giving the circuit court jurisdiction, yet the circuit court, on the Bar's motion, dismissed for a lack of jurisdiction. This is a clear reversible error that requires reversal.

C. The Order does not address Rule 2.420(e)(2) and is silent on the public-records cause of action.

The Order Granting The Florida Bar Defendants' Motion to Dismiss and Final Judgment for Defendants (R. 769–70) consists of three sentences of substance:

1. The Court does not have jurisdiction to review the Bar's decision to dismiss Plaintiff's grievance

against the attorney in his dissolution case. See *Tyson v. The Fla. Bar*, 826 So. 2d (Fla. 2002).
2. The Florida Bar and its employees are immune from suit in acts taken in their official capacity. *Cole v. Owens*, 766 So. 2d 287 (Fla. 2002).
3. The Plaintiff has failed to state a cause of action for all the reasons articulated in the Defendants' Motion to Dismiss. Any Amendment would be futile.

First, neither Rule 2.420(e)(2) nor any other authority addressing public-records jurisdiction is cited. Second, the Order's only "jurisdictional" discussion concerns review of "the Bar's decision to dismiss Plaintiff's grievance." That description does not match the public-records claim at all — Appellant's records claim does not seek "review of the Bar's decision"; it seeks production of records the Bar's own letters confirm relate to a now-closed matter. (R. 641; R. 643.) Third, the Order's catch-all incorporation of the MTD does not save the result, because the MTD itself nowhere mentions any authority on which dismissal might be appropriate under the present facts. (See R. 631–38.)

A trial court is not free to ignore a binding rule of jurisdiction simply because the parties' submissions did not press it adequately. Here, the Petition pressed the Rule at the outset, and Appellant pressed it again in opposition to the MTD and in the motion for rehearing. The Order's failure even to acknowledge the controlling rule is, by itself, reversible error.

D. Rule 2.420(e)(2) and Article V, Section 15 are complementary, not conflicting.

Appellees argued below — and the trial court appears to have accepted — that Article V, Section 15 of the Florida Constitution (granting the Florida Supreme Court “exclusive jurisdiction to regulate the admission of persons to the practice of law and the discipline of persons admitted”) forecloses circuit-court jurisdiction over The Florida Bar. (R. 631.) That argument confuses two different things: substantive review of disciplinary outcomes, on the one hand, and procedural enforcement of public-records and other ministerial duties, on the other.

The two coexist. The Florida Supreme Court has the exclusive authority to regulate attorney admissions and discipline. The Florida Supreme Court itself has also delegated to the circuit courts the authority to enforce public-records duties against non-judge custodians of judicial-branch records. Rule 2.420(e)(2) is the vehicle for that delegation. There is no conflict, because the Rule does not authorize a circuit court to discipline anyone, prescribe disciplinary outcomes, or otherwise intrude on the Supreme Court's substantive authority.

Rule 2.420(e)(2) authorizes only enforcement of the access right that Article I, Section 24 secures. *See Pantori, Inc. v. Stephenson*, 384 So. 2d

1357, 1358 (Fla. 5th DCA 1980) (circuit courts have such powers as the Rules Regulating The Florida Bar provide); *The Fla. Bar v. Committe*, 916 So. 2d 741, 745 (Fla. 2005) (recognizing access right to closed-file Bar records under Rule 3-7.1).

The Florida Supreme Court has explicitly relied on this distinction in Bar-records cases. In *Committe*, the Court enforced the public-access provisions of Rule 3-7.1, ordering production of Bar records in a closed disciplinary file. *Id.* The case made clear that the right of access to closed-file records does not depend on the Supreme Court's reopening or revisiting the underlying discipline. Access is its own remedy, available wherever the constitutional and rule-based right has been denied.

E. Refusing to exercise jurisdiction conferred by rule is itself reversible error.

Even where a court doubts the merits of a claim, it is not free to refuse to exercise jurisdiction the rules confer. The Florida Supreme Court has long distinguished between courts that act without jurisdiction (where prohibition is the remedy) and courts that refuse to exercise jurisdiction they possess (where mandamus is the remedy). *English v. McCrary*, 348 So. 2d 293, 296–97 (Fla. 1977).

The trial court's silent refusal to address Rule 2.420(e)(2) — while purporting to dispose of the case for lack of jurisdiction — is the latter situation. The Court should reverse on this ground alone.

II. THE TRIAL COURT MISAPPLIED *TYSON V. THE FLORIDA BAR* TO DISMISS A PETITION ALLEGING NON-PERFORMANCE OF MINISTERIAL DUTIES.

A. Tyson stands for two propositions, only one of which the Order relies on.

Tyson v. The Fla. Bar, 826 So. 2d 265 (Fla. 2002), is a Florida Supreme Court decision denying mandamus to a Bar complainant. Two distinct propositions emerge from the opinion. The first is that complainants do not control prosecutorial decisions in disciplinary matters: complaining witnesses “cannot demand that the prosecuting authority file criminal charges against a particular individual.” *Id.* at 268. The second is the Court's affirmation of the rule that “[m]andamus lies to compel the performance of a specific imperative ministerial duty.” *Id.*

The trial court's Order applies the first proposition to dismiss every claim in the Petition. (R. 769.) That extension is unwarranted. The first proposition concerns review of the Bar's discretionary outcome — whether to charge — and does not foreclose mandamus over duties that are not discretionary in the first place. The Tyson Court itself entertained the

petition because mandamus was the proper vehicle to test whether ministerial duties had been performed; the Court denied relief on the merits because, on the record before it, the duties had been performed. Conversely in the present facts, Appellant has demonstrated the Florida Bar's failure to perform both its public records duties and ministerial duty to investigate.

B. The duties this Petition seeks to enforce are ministerial, not discretionary.

At least three duties Appellant pleaded are specifically and demonstrably ministerial within the meaning of *Tyson* and long-standing Florida mandamus doctrine.

1. The duty to investigate. Rule 3-7.3(c) provides: “The bar shall investigate any alleged misconduct or incapacity of a member of the bar called to its attention by a grievance complaint or otherwise that, if proven, would constitute a violation of the Rules Regulating The Florida Bar” R. Regulating Fla. Bar 3-7.3(c) (emphasis added). The mandatory “shall” creates a ministerial duty. The Bar has discretion as to how it investigates; it has no discretion as to whether to investigate when a grievance complaint is filed and falls within the Rule's coverage.

2. The duty of public disclosure. Rule 3-7.1(b) defines as public records, once a file is closed, “any reports, correspondence, papers, and other materials furnished to, served on, or received from the respondent.” R. Regulating Fla. Bar 3-7.1(b). The custodian's duty either to produce existing public records, or to confirm under oath that no responsive record exists, is ministerial. See *Mills v. State*, 684 So. 2d 801, 806 (Fla. 1996) (custodian's duty to respond to a public-records request).

3. The duty to engage. Rules 3-7.1 and 3-7.3 together establish a procedural framework by which a complainant has the right to be heard and to know how the matter has been processed. These duties do not give the complainant control over the outcome; they secure procedural rights that, once invoked by a properly filed complaint, the Bar must honor.

The record below documents Appellant's repeated, specific, and largely unanswered requests for engagement during the Bar's processing of the complaint, spanning from February 2025 through November 2025. (R. 39–74.) The Bar's silence in response to those requests, coupled with the absence of any Bar-generated record reflecting outreach to Davis or any reviewer's substantive evaluation, is precisely the failure of duty Rules 3-7.1 and 3-7.3 forbid.

C. The record is silent as to whether any investigation under Rule 3-7.3(c) was actually performed — and that silence, viewed against the Bar's own three-level description, is fatal at the dismissal stage.

This is the dispositive factual point that distinguishes this aspect of the present case from *Tyson*. In *Tyson*, the Florida Supreme Court denied the writ because the record showed the Bar had “investigated” and had “obtained a response” from the respondent. 826 So. 2d at 268. Here, by contrast, the record below contains nothing of the kind.

The Bar's Director of Intake represented in writing that the processing of Appellant's complaint included three levels of review: “investigation by a Senior Staff Attorney, review of the closure by the undersigned as Director of Intake, and a review by the Chair of Grievance Committee 13A.” (R. 641.) Yet the record below contains:

- No investigative file from the Senior Staff Attorney.
- No review memorandum, evaluation, or work product from the Director of Intake reflecting that her “review of the closure” was anything more than a paper check of Appellant's submissions.
- No notes, memorandum, or work product from the Grievance Committee Chair reflecting that her “review of the file” was anything more than the same.

- No communications between the Bar and the respondent attorney other than a single email from the respondent identifying a typographical error in a letter the Bar had previously sent him. (R. 19, ¶ 36; R. 647, ¶¶ 16–20.)

The Bar's own production is internally contradictory. If a Senior Staff Attorney “investigated,” there must be an investigative file. If the Director of Intake “review[ed] . . . the closure,” there must have been something to review other than the well documented complaint and supporting materials; and beyond that, some review memorandum. If the Grievance Committee Chair “review[ed] . . . the file,” there must be records reflecting that review. None of these has been produced — and the Florida Bar Defendants represented to the trial court that no further records exist. (R. 634.)

Two readings of this record are possible — and neither escapes mandamus.

Reading One: the records the Bar's own letter implies exist (an investigative file, a review memorandum, Grievance-Committee Chair notes, a predicate letter to Davis, any responsive materials from Davis) actually exist. If that's the case, the Bar concealed them (and continues to conceal them) in violation of Rule 3-7.1(b) and Article I, Section 24.

Reading Two: the “investigation” the Bar's correspondence describes was a paper review of Appellant's submissions only — no contact with the respondent attorney, no development of a record beyond what the complainant himself supplied, and no work product committed to writing. Under that reading, the Bar did not perform the investigation Rule 3-7.3(c) makes mandatory. Whatever discretion the Bar enjoys in how it investigates, Rule 3-7.3(c)'s mandatory “shall” does not authorize the Bar to label a one-sided paper review an “investigation” while collecting no evidence beyond the complaint itself. As Appellant put it below: “either the records exist and must be produced under Rule 3-7.1(b), . . . or they do not exist, and the Defendants failed to perform their ministerial duties.” (R. 654, ¶ 63.)

Tyson does not authorize dismissal under either reading. The *Tyson* Court denied the writ because the duty had been performed; the Court did not say the writ would be unavailable if the duty had not been performed or if the record was as silent as it is here. The trial court's Order sweeps this Petition into the *Tyson* framework as if the duty had clearly been performed — but the record permits no such finding at the pleading stage.

D. Closure without investigation also implicates the public-records analysis.

The interplay between Rule 3-7.3 (investigate before closure) and Rule 3-7.1(b) (post-closure public-records disclosure) is straightforward. If the Bar followed its own rules and conducted an investigation, the records of that investigation are now public under Rule 3-7.1(b). If the Bar did not conduct an investigation, the absence of records is itself the failure of duty Appellant pleads. There is no third path under which dismissal is proper.

III. THE TRIAL COURT MISAPPLIED *COLE V. OWENS* TO BAR THIS MANDAMUS ACTION ON IMMUNITY GROUNDS.

A. *Cole v. Owens* involves tort liability for damages, not mandamus.

Cole v. Owens, 766 So. 2d 287 (Fla. 4th DCA 2000), addresses the immunity of Bar officials from suits seeking money damages. The *Cole* plaintiff sued Bar attorneys “for their failure to refer a complaint against the plaintiff’s former attorney to the grievance committee and rejection of his demand to reopen their investigation.” (R. 632, quoting MTD.) The remedy he sought was money damages and civil-rights relief. *Cole*, 766 So. 2d at 288. The Fourth District held — consistent with longstanding Florida law — that Bar officials acting in their disciplinary capacity have absolute immunity from such suits. *Id.*

The cases on which *Cole* builds — *Henry v. Harkness*, 701 F. App’x 878 (11th Cir. 2017); *Carroll v. Gross*, 984 F.2d 392 (11th Cir. 1993);

Mueller v. The Fla. Bar, 390 So. 2d 449 (Fla. 4th DCA 1980); *Spano v. Hoffman*, 968 So. 2d 674 (Fla. 4th DCA 2007); *Kee v. Baily*, 634 So. 2d 654 (Fla. 3d DCA 1994); *Zavadil v. Fla. Bar*, 197 So. 3d 596 (Fla. 4th DCA 2016) — uniformly involve damages claims. The MTD relies on every one of these cases. (R. 635–37.) None involves mandamus or specific performance. None addresses whether absolute immunity bars an action seeking only an order requiring an official to comply with mandatory legal duties.

B. Mandamus is not a tort suit — it is specific performance of a legal duty.

The distinction matters because absolute immunity protects officials from liability — that is, from being made personally answerable in damages for actions taken in their official capacity. It does not protect officials from being required to do their jobs.

Florida law has long recognized this distinction. Sovereign and official immunity bar actions for damages against the State and its officers in their personal capacity. They do not bar prospective relief commanding compliance with the law. Mandamus exists to compel public officials to perform mandatory duties; it is not, and has never been, a damages remedy.

If absolute immunity barred mandamus, the consequence would be intolerable: every public official, in every official capacity, would be free to ignore every public-records request, every statutory duty, and every constitutional command. That is not the law. Indeed, the Florida Supreme Court has issued mandamus to compel access to closed Bar records. See *The Fla. Bar v. Committee*, 916 So. 2d 741, 745 (Fla. 2005).

And the same Florida Supreme Court has held — in a case the MTD does not cite — that prevailing public-records plaintiffs are entitled to mandatory statutory fees against non-complying agencies even absent a finding of bad faith. *Bd. of Trs., Jacksonville Police & Fire Pension Fund v. Lee*, 189 So. 3d 120, 125 (Fla. 2016). These outcomes presuppose that mandamus and public-records actions lie against officials acting in their official capacities — which is to say, exactly the actions Appellees say Cole forecloses.

The policy rationale for absolute immunity recited in *Cassell v. India*, 964 So. 2d 190, 194 (Fla. 4th DCA 2007), (which the MTD invokes (R. 637)), is to protect officials from “the danger of even an unsuccessful civil action” for damages against their personal interests. That rationale has no application to a writ ordering compliance with the law and performance of the specific ministerial duties sought in the present case. A mandamus

respondent does not pay damages out of personal funds; he or she performs a duty owed to the public, mandatory under the law.

C. The Order's bare citation of *Cole v. Owens* cannot supply the missing analysis.

The Order's entire treatment of immunity is a single sentence: “The Florida Bar and its employees are immune from suit in acts taken in their official capacity. *Cole v. Owens*, 766 So. 2d 287 (Fla. 2002).” (R. 769.) The citation contains an apparent transcription error — *Cole* was decided by the Fourth District in 2000, not by the Florida Supreme Court in 2002 — but the larger problem is the absence of any explanation as to why a tort-immunity case would govern a mandamus action seeking specific performance of public-records duties. It does not. Reversal is required on this ground as well.

IV. THE PETITION STATES A PRIMA FACIE CASE FOR MANDAMUS UNDER FLORIDA RULE OF CIVIL PROCEDURE 1.630.

The elements of mandamus are well-settled: (1) a clear legal right to the requested relief; (2) an indubitable legal duty to perform the requested action that is ministerial rather than discretionary; and (3) the absence of any other adequate remedy at law. The Petition pleads each element.

A. Clear legal right.

The Petition pleads two clear legal rights, each rooted in constitutional text and rules adopted by the Florida Supreme Court and supported by unrefuted facts.

First, the right of public access. Article I, Section 24 secures the right “to inspect or copy any public record made or received in connection with the official business of any public body, officer, or employee of the state.” Fla. Const. art. I, § 24(a). Rule 2.420 specifies that this right extends to records of “the judicial branch,” which includes The Florida Bar. Rule 3-7.1(b) makes “any reports, correspondence, papers, and other materials furnished to, served on, or received from the respondent” public records once the disciplinary file is closed. The Bar has confirmed the file is closed. (R. 641; R. 643.)

Second, the right to engagement and investigation. Rule 3-7.3(c) provides that “the bar shall investigate” alleged misconduct that, if proven, would constitute a violation of the Rules. R. Regulating Fla. Bar 3-7.3(c). This duty is mandatory and arises from Appellant's filing of a verified, fact-specific Bar complaint that Appellees nowhere contend was facially insufficient.

B. Indubitable legal duty (ministerial, not discretionary).

The duties to produce public records and to investigate properly are ministerial within the meaning of Florida mandamus doctrine. See *Mills v. State*, 684 So. 2d 801, 806 (Fla. 1996) (custodian's duty to comply with a public-records request is ministerial); *Tyson v. The Fla. Bar*, 826 So. 2d 265, 268 (Fla. 2002) ("Mandamus lies to compel the performance of a specific imperative ministerial duty."); *Bd. of Trs., Jacksonville Police & Fire Pension Fund v. Lee*, 189 So. 3d 120, 125 (Fla. 2016) (recognizing public-records compliance as a duty enforceable through mandamus and statutory fees, even absent bad faith).

The duty to produce existing public records is written directly into the state's constitution as a core function of government. The Rules provide no discretion to a custodian to refuse non-exempt records like the ones sought here. The duty to investigate is ministerial because Rule 3-7.3(c)'s "shall" leaves no discretion as to whether the duty attaches.

Appellee Courtemanche's own published seminar materials confirm the breadth of these obligations. Mr. Courtemanche instructs Florida agencies that internal communications, drafts, working copies, preliminary versions, and inter-office memoranda are public records, and he reminds custodians: "Don't say NO unless you are sure." (R. 671 [slide]; R. 653–54, ¶¶ 56–62.) These instructions are the law as Mr. Courtemanche himself

states it. They bind him, even when it's clear that he has violated his own rules.

C. No other adequate remedy.

Appellant exhausted the Bar's own internal review processes — Bar Counsel review, ACAP Director review, Grievance Committee Chair review — and obtained closure decisions on the papers, with no resulting investigative file, review memorandum, or notes ever produced. (R. 640–43.) He filed a public-records request, which produced an incomplete record and silence as to the existence of communications with the respondent attorney. (R. 19, ¶ 36; R. 627.) Appellant sent multiple specific follow-ups asking whether such communications exist and whether confidentiality is being claimed; yet he received no substantive response. (R. 19, ¶ 37; R. 20, ¶ 38.) The Bar's own correspondence advised him that further communications would be placed in the file “without response.” (R. 641.) The Bar's procedures provide no further administrative remedy. Mandamus is the only mechanism left. (R. 25–26, ¶¶ 71–72.)

V. THE “RECORDS DO NOT EXIST” DEFENSE WAS IMPROPER AT THE MOTION-TO-DISMISS STAGE AND IS LOGICALLY SELF-DEFEATING.

A. Extrinsic factual assertions cannot defeat a complaint at the dismissal stage.

The MTD argues, and the trial court appears to have accepted, that no responsive records exist beyond what the Bar already produced. (R. 634–35.) That is an extrinsic factual assertion, not a fact in evidence nor a basis for the dismissal. The Petition expressly alleges that records exist. (R. 19, ¶ 36; R. 21, ¶¶ 45–46.) The Bar's contrary representation cannot be considered on a motion to dismiss. *City of Gainesville*, 778 So. 2d at 522. Under Florida pleading practice, the well-pleaded factual allegations of the petition must be accepted as true and all reasonable inferences drawn in favor of the non-movant. The trial court erred in resolving this disputed factual question against Appellant at the pleading stage.

Appellees relied below on cases such as *Mills v. State*, 684 So. 2d 801 (Fla. 1996); *Hillier v. City of Plantation*, 935 So. 2d 105 (Fla. 4th DCA 2006); and *Skeen v. D'Allessandro*, 681 So. 2d 712, 713 (Fla. 2d DCA 1995). (R. 634–35.) Those decisions stand for the proposition that a custodian cannot be compelled to produce records that do not exist. They do not authorize a court to dismiss a public-records action on a representation of non-existence at the pleading stage. Such an interpretation would also offend basic due-process principles. Dismissal of a constitutional records claim on a contested factual representation never tested by sworn evidence or adversarial process, at the very stage when

the well-pleaded allegations of the petition must be accepted as true and all reasonable inferences drawn in favor of the non-movant, specifically removes the “due process” from the process. See *City of Gainesville*, 778 So. 2d at 522.

The record below contains no sworn confirmation, and no clear statement, that responsive records do not exist anywhere in the Bar's possession. The Florida Bar consistently characterized its compliance as having produced “the entire public record related to [the] request,” (R. 627; see also R. 48–49 [Bar's Nov. 10, 2025 response: “You have been provided with the entire public record related to your request.”]) — phrasing that is itself a hedge, conveying completeness while reserving the question whether responsive records exist outside the file the custodian compiled.

When pressed on that question — including by Appellant's specific yes/no inquiry about communications with the respondent attorney (R. 39–40), the Bar declined to answer. (R. 19, ¶ 37; R. 20, ¶ 38; R. 647–48, ¶¶ 16–21.) Neither the MTD (R. 625–43) nor the Order (R. 769–70) cures this evidentiary gap by way of sworn affidavit or finding. The cases Appellees cite are accordingly inapposite at the pleading stage, and the Bar's hedge — not Appellant's pleading — is what fails the *City of Gainesville* standard.

B. Even if accepted, the “records do not exist” defense is logically self-defeating.

The defense fails on its own terms because there is no path under which the Bar's representations are both true and exonerating:

Scenario A — the records exist. If the Bar communicated with the respondent attorney about the Davis Bar Complaint — and the Bar's own correspondence shows that it did, even if only in a “typographical error” email exchange (R. 19, ¶ 36) — those communications are public records under Rule 3-7.1(b). Withholding them violates Article I, Section 24, Rule 2.420, and Rule 3-7.1(b). The same is true of the investigative files, the Director-of-Intake review memorandum, and the Grievance-Committee Chair's notes that the Bar's own three-level description (R. 641) implies must exist.

Scenario B — the records do not exist. If the Bar generated zero records and received zero response from the respondent attorney during its handling of the complaint, then the Bar concedes it never opened or conducted the investigation that Rule 3-7.3(c) makes mandatory. A “review” of the complainant's papers alone, with no evidence developed, no respondent contacted, and no work product committed to writing, is not

compliant with any sense of good faith and the investigation Rule 3-7.3(c) requires.

There is no third scenario. The Bar's filings below are studiously ambiguous on which scenario it now embraces. (R. 647–48, ¶¶ 16–21.) Mandamus is required either way, because either way the Bar has failed to perform its ministerial duties.

C. The Bar's own training materials confirm the rule.

Appellee Courtemanche's published presentation on Florida public-records law instructs Florida agencies that internal communications, drafts, working copies, preliminary versions, and inter-office memoranda are all public records, regardless of any retention or filing distinctions. (R. 653–55, ¶¶ 53–65; R. 659–713.) These instructions are inconsistent with the Bar's litigation position that internal communications “do not exist” or, if they do, are somehow exempt. Where the custodian itself teaches the broader definition of “public record,” the custodian cannot defeat a public records claim by silently and unlawfully invoking a narrower one.

VI. ADDITIONALLY AND ALTERNATIVELY, THE DISCIPLINARY-RELATED RELIEF SURVIVES BECAUSE TYSON ITSELF AUTHORIZES MANDAMUS TO COMPEL MINISTERIAL DUTIES.

Appellant's principal arguments above are sufficient to require reversal because the public-records and ministerial-duty claims survive

Tyson and *Cole* on their own terms. In the alternative, Appellant submits that even the Petition's request to require the Bar to reopen and properly handle the Davis Bar Complaint survives, because *Tyson* itself authorizes mandamus to compel the performance of “a specific imperative ministerial duty.” 826 So. 2d at 268. The duty to open and conduct a preliminary investigation under Rule 3-7.3(c) is precisely such a duty. Where, as here, the record below contains no documentation of any actual investigative work — and the Bar's own three-level description is contradicted by its own production — mandamus to compel that ministerial step is not foreclosed by Article V, Section 15 or by *Tyson*.

To the extent the relief Appellant requested below could be read to extend beyond compelling that ministerial step into directing the disciplinary outcome, Appellant disclaims such relief on this appeal and asks only that the Petition be permitted to proceed as to ministerial relief including that related to the investigation and public-records access. Whatever discretion the Bar enjoys in disciplinary outcomes, it has no discretion to refuse to investigate as Rule 3-7.3(c) makes mandatory.

VII. THE ORDER DENYING REHEARING DID NOT CURE THE LEGAL ERROR.

Standard of review: de novo. The Verified Motion for Rehearing presented a question of subject-matter jurisdiction. The trial court's failure to apply Florida Rule of General Practice and Judicial Administration 2.420(e)(2) presents a pure question of law, reviewed de novo at every stage of the proceedings.

Preserved at: Verified Motion for Rehearing (R. 771–74); Order Denying Rehearing (R. 775).

A motion under Florida Rule of Civil Procedure 1.530 may properly call attention to controlling law that the trial court overlooked or misapprehended. Appellant's Verified Motion for Rehearing did exactly that — it directed the trial court to Rule 2.420(e)(2), the rule that vests circuit-court jurisdiction over public-records enforcement against non-judge custodians of judicial-branch records. (R. 772, ¶¶ 7–13.)

The Rehearing Order is one paragraph: “There is no legal or factual basis to grant Plaintiffs’ motion. Therefore, it is ORDERED AND ADJUDGED that Plaintiffs motion is DENIED. No further motions for rehearing or reconsideration will be allowed. The Clerk of [Court] shall close the file.” (R. 775.) The Rehearing Order makes no findings, identifies no reason, and does not address Rule 2.420(e)(2).

A trial court is not obligated to grant every motion for rehearing. But where a motion identifies binding authority that the court overlooked, and the court denies the motion without engaging that authority, the underlying error is preserved for appellate review. The same legal error infects both the Order (R. 769–70) and the Rehearing Order (R. 775). Both must be reversed.

CONCLUSION

For the reasons stated above, Appellant respectfully requests that this Court:

1. Reverse the Order Granting The Florida Bar Defendants' Motion to Dismiss and Final Judgment for Defendants entered February 13, 2026, and the Order Denying Motion for Rehearing entered February 24, 2026;

2. Remand with instructions that the Petition proceed on the merits as to the public-records claim under Article I, Section 24 of the Florida Constitution and Rule 2.420, and as to the mandamus claim to compel the ministerial duties imposed by Rules 3-7.1 and 3-7.3 of the Rules Regulating The Florida Bar; and

3. Award Appellant his reasonable attorney's fees and costs incurred in this appeal pursuant to Florida Rule of Appellate Procedure 9.400.

Appellant's entitlement to fees, preserved in the Verified Petition (R. 30–31, ¶ 12), is supported by the substantive parity between Chapter 119, Florida Statutes, and Florida Rule of General Practice and Judicial Administration 2.420 in enforcing Article I, Section 24 of the Florida Constitution; as well as the inherent equitable power of this Court to award fees under the bad-faith doctrine of *Bitterman v. Bitterman*, 714 So. 2d 356 (Fla. 1998). Appellant will file a contemporaneous, detailed motion for fees in accordance with Florida Rule of Appellate Procedure 9.400(b).

4. Grant such other relief as the Court deems just and proper.

Respectfully submitted,
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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on May 6, 2026, I electronically filed the foregoing Initial Brief of Appellant with the Clerk of the First District Court of Appeal via the Florida Courts E-Filing Portal, which will serve a true and correct copy upon: M. Hope Keating, Esq., and John K. Londot, Esq., GREENBERG TRAURIG, P.A., 101 East College Avenue, Tallahassee, Florida 32301, Counsel for Appellees.

/s/ Christopher Hanson

Christopher Hanson, Esq.

Florida Bar No. 44094

CERTIFICATE OF COMPLIANCE

I HEREBY CERTIFY that this brief complies with the font and word-count requirements of Florida Rules of Appellate Procedure 9.045 and 9.210. This brief is set in Arial 14-point font and contains approximately 8,719 words, exclusive of the cover page, the table of contents, the table of citations, the signature block, and the certificates.

/s/ Christopher Hanson

Christopher Hanson, Esq.

Florida Bar No. 44094